1.0 PURPOSE

Social media/social networking provides an additional method for communicating with West Virginia State Citizens; State agencies; agencies outside the State; business partners; and current, future, and former employees. It is an optional model for interaction that can assist agencies in building stronger, more successful citizen and agency business relationships.

This document provides policy for the professional use of internal and external social media (i.e. Facebook, Twitter, YouTube, Flickr, etc.) at State of West Virginia Executive agencies, including:

- Appropriate implementation and authorization of agency-issued social media sites;
- Responsible use of social media to conduct work-related research and evaluations of people, places, or other organizations;
- Security measures to protect individuals, sensitive information, and State systems; and
- Accurate and professional representation of the State's positions.

Executive branch agencies may utilize this policy as a component of agency policy development for using social media services. No agency policy may be less stringent.

2.0 SCOPE

This policy applies to all Executive Branch employees, contractors, or vendors who utilize, review, monitor, and/or update social media sites as a function of their job. Additionally, this policy applies to employees who access social media sites using State resources or otherwise represent themselves as State personnel.

3.0 POLICY

3.1 The State reserves the right to filter Internet and social media site availability, and to monitor and review all use.

3.1.1 Internet access to Social Media web sites is limited according to the agency's acceptable use policy.

3.1.2 Internet access to social media will be granted only to users who are specifically authorized.

3.1.3 Only business related activities are sanctioned.

3.2 Any user of Social Media for State purposes must be required to read and acknowledge this Social Media policy by completing the signoff sheet attached as Appendix A.

3.3 Employees and contractors have no expectation of privacy while using State-provided information resources. Agencies, through their Information Security Administrators (ISA's) will govern employee access to social media online, and specifically identify personnel who are to have elevated access privileges to social media sites.

3.4 Any content used or disseminated on the Internet is limited to non-confidential and non-sensitive information.

3.5 Individual user ids and passwords must not be duplicated across multiple sites. Use of a current State System password as a password on a social networking site endangers the State system if the social networking site is subject to a security breach.

3.6 Agency-developed social media sites

3.6.1 All agency-sanctioned communication through social media outlets shall remain professional in nature and shall always be publicized or posted in accordance with the agency's existing communications policy, practices, and expectations.

3.6.1.1 Social media settings which allow public interaction should be modified to prevent posting of objectionable, inappropriate, or uncensored material.

3.6.1.2 When using Facebook, settings should require pre-approval by a State employee of any post to an agency's "Facebook Wall."

3.6.2 To avoid potential privacy violations, employees must not reference or cite clients, partners, or customers without their written consent for each specific reference.

3.6.3 When technically feasible, accounts must use two-factor (or multifactor) authentication mechanisms to login. Two-factor authentication adds a layer of protection to the standard password method of online identification.

3.6.4 At least two people should be given administrative rights to social media accounts to ensure that issues can be handled quickly, in case of an absence.

3.6.5 Administrative access should be checked, at pre-established intervals, to ensure rights have not been added to unapproved users.

3.6.6 Individual users should not connect or login through State social media accounts from their personal social media accounts.

3.6.6.1 If an individual account is required before an agency can use a social media platform (e.g. Facebook Pages), a new account should be created using a state-issued email address.

3.6.6.2 State employees must not utilize personal accounts to set up State Social Media sites.

3.6.6.3 Individual, or personal accounts being used for official State business must follow this policy.

3.6.7 All responses to the public, comments, and/or posts should be monitored and approved beforehand, when possible, by a State employee, rather than a contractor, or 3rd party site content manager.

3.7 All employees utilizing social media on behalf of the State, for any purpose, will observe the following:

3.7.1 Users must identify themselves with a full professional signature. This will include the individual's name, the individual's title, and agency/office/department name.

3.7.2 Users must use caution about what they publish.
Users are accountable for content that they post or publish and must seek and obtain legal and management authorization in making a decision to post content that could be deemed inappropriate or unreliable.

3.7.3 Users shall not post confidential, sensitive, legally protected, or proprietary information.

3.7.4 Users shall respect copyrights and fair use. Any time users publish copyrighted material, they shall always maintain, and be able to produce, written permission.

3.7.5 State/agency logos and trademarks may not be used without appropriate authorization.

3.7.6 Employees using a form of social media on behalf of the State must be aware of, and responsible for compliance with, the Terms of Service (TOS) of the particular form of media in order to avoid any type of potential legal violation.

3.7.7 Users are prohibited from using social networking sites from State equipment for political purposes, to conduct private commercial transactions, or to engage in other personal and private activities.

3.7.8 Users who connect to Social Media web sites through State information assets are subject to all agency and State requirements addressing prohibited or inappropriate behavior in the workplace, including acceptable use policies, user agreements, sexual harassment policies, internet usage policies, etc.

3.7.9 Users will not visit any social media websites that are not related to a business purpose.

3.7.10 Users will exercise extreme caution while on social media sites and will not click unknown links, download unapproved programs, or put at risk any State system or network.

3.8 Required Disclaimers

3.8.1 Employees who post or publish non-official statements to a blog or website or other social media, for work-related purposes, must include the following disclaimer:

3.8.2 The views expressed here are mine alone and do not necessarily reflect the views of my employing agency and/or the State of West Virginia. My State employer has not reviewed or approved any of its content, and therefore accepts no responsibility.

3.8.3 Communication via agency-related social networking Web sites is a public record and will be managed as such. Both the posts of the employee administrator and any responses by other employees or non-employees, including citizens, will become part of the public realm. Agencies should include the following statement (or some version of it) somewhere on the social networking site:

3.8.4 Representatives of the State of West Virginia Executive Branch communicate via this Web site. Consequently, any communication via this site, whether by a State employee or the general public, may be subject to monitoring and disclosure to third parties. Appropriate discretion should be exercised at all times. This site is not appropriate for individuals to discuss specific protected health information or legal issues, because of the lack of confidentiality/privacy.

4.0 RELEVANT MATERIALS/DOCUMENTS

This policy is consistent with the following federal and state authorities:

- 45 Code of Federal Regulations (CFR) §§ 164.308-316
- Freedom of Information Act
- Gramm-Leach Bliley Act (GLBA)
- Health Insurance Portability and Accountability Privacy Rule
- NIST SP 800-14 and NIST SP 800-53
- State Health Privacy Laws
- WV Code § 5A-6-4a
- WV Executive Order No. 7-03
- WVOT Policies Issued by the Chief Technology Officer (CTO), https://sites.google.com/wv.gov/othub/ot-policies

5.0 ENFORCEMENT & AUTHORITY

Any employee found to have violated this policy may be subject to disciplinary action up to and including dismissal. Disciplinary action will be administered by the employing agency and may be based upon recommendations of the WVOT and the **West Virginia Division of Personnel**. Please review the **WVOT Policy and Procedure Policy #1000** to review additional provisions concerning enforcement and policy authority.

6.0 POLICY-SPECIFIC DEFINITIONS

6.1 Employee – Individuals retained and authorized on a temporary, part-time, full-time, or permanent basis by the State of West Virginia to perform a service. For the purposes of information technology and security policy, the term “employee” shall include, but not be limited to, the following: contractors, subcontractors, contractors’ employees, volunteers, county health department staff, business associates, and any other persons who are determined and notified by the WVOT to be subject to this policy. This definition does not create any additional rights or duties.

6.2 Social Media – Social media includes web- and mobile-based technologies which are used to turn communication into interactive dialogue among organizations, communities, and individuals. Examples are Facebook, Twitter, YouTube, etc.

6.3 Social Networking – In the online world, social networking is the term used to describe the way that users build online networks of contacts and interact with these personal or business friends in a secure environment. Some of the most popular social networking sites include Facebook and Twitter.

6.4 Terms of Service (TOS) – Rules by which one must agree to abide by in order to use a service. It is generally assumed such terms are legally binding.

6.5 User – A person authorized to access an information resource.

6.6 Web – World Wide Web means the complete set of documents residing on all Internet servers that use the HTTP protocol, accessible to users via a simple point-and-click system. Sometimes the WEB and "Internet" are used as if they mean the same thing, however, the Internet is actually the network infrastructure that supports the WEB.

7.0 CHANGE LOG

- 7/1/2015 –
  - Added Section 7.0, Change Log History;
  - Reorganized sections; Cleaned up Related Documents/Materials;
  - Made Policy-Specific Definitions;
  - Removed acknowledgement form (consolidated into training);
  - Clarified Scope with additional language, "Additionally, this policy applies to employees who access social media sites using State resources or otherwise represent themselves as State personnel."
- 9/1/2016 – Policy Reviewed. No edits made.
- 10/20/2017 – Policy Reviewed. No edits made.
- 12/31/2023
  - Updated WVOT web address in Section 4.0

SOCIAL MEDIA POLICIES ACKNOWLEDGMENT

Department: _____

Agency: _____

Site: _____

I have read, understand, and agree to abide by the West Virginia Office of Technology Policy for Social Media (WVOT-PO1017).

I understand and agree that if I violate any of the provisions of any of these policies I may be subject to disciplinary action up to and including termination.

_____ _____
Signature Date

_____
Printed Name